Software Services and Vendor Agreement

Category: Services / vendor agreement

PARTIES	Blue Oak Retail Pvt. Ltd. (fictional Customer) and OrbitStack Solutions (fictional Provider)
EFFECTIVE / REFERENCE DATE	1 November 2026

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Background

The Customer is engaging the Provider to host and maintain an inventory dashboard for a twelve-month initial term. The parties want the agreement to document deliverables, fees, service levels, data handling, and exit obligations.

1. Scope and Deliverables

The Provider will configure the inventory dashboard, connect up to three data sources, provide administrator training, and maintain the hosted service during the Term. A detailed project plan will be agreed by email.

The Provider may modify non-material features from time to time. The Provider shall not materially reduce core functionality during the Initial Term without providing reasonable prior notice. “Non-material” and “core functionality” are not defined.

2. Fees and Payment

The Customer will pay ■1,20,000 per month, invoiced in advance. Invoices are due within fifteen calendar days. Disputed amounts must be notified within seven days, but the Customer must pay all undisputed amounts on time.

Late charges are 2% per month or the maximum lawful rate, whichever is lower. The agreement does not specify whether the charge compounds.

3. Service Availability and Support

The Provider will target 99.5% monthly availability, excluding scheduled maintenance and outages caused by third-party networks. Support is available from 9:00 a.m. to 6:00 p.m. on business days.

No service credits, severity definitions, response-time commitments, or remedy for repeated availability failures are specified.

4. Customer Data and Security

The Customer retains ownership of Customer Data. The Provider may process it only to provide and secure the service and may use aggregated, de-identified metrics to improve the service.

The Provider will maintain commercially reasonable security controls and notify the Customer of a confirmed security incident without undue delay. The clause does not define a specific notification window, audit right, or data-location commitment.

5. Intellectual Property

Each party retains its pre-existing intellectual property. Upon full payment, the Customer receives a non-exclusive, non-transferable licence to use deliverables internally. The agreement does not clearly allocate ownership of

custom scripts created specifically for the Customer.

6. Termination and Exit

Either party may terminate for a material breach not cured within thirty days after written notice. The Customer may terminate for convenience on sixty days' notice, but all fees for the remaining Initial Term become immediately payable.

At termination, the Provider will make Customer Data available for export for fourteen days. The Provider may delete remaining data after that period. No migration assistance rate or export format is specified.

7. Liability and Indemnity

Each party's aggregate liability is capped at fees paid or payable in the preceding three months. The cap does not apply to fraud, wilful misconduct, or payment obligations. The agreement does not expressly exclude data-protection breaches or confidentiality breaches from the cap.

The Provider will defend third-party claims alleging that the unmodified service infringes intellectual property rights, subject to prompt notice and control of the defence.

8. Governing Law

This agreement is governed by the laws of Tamil Nadu, India. Courts at Chennai will have jurisdiction, subject to applicable law.

Signatures (sample only)

For Party A	For Party B
_____	_____
Name: _____	Name: _____
Date: _____	Date: _____